

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.: 78829		FOR COURT USE ONLY	
NAME: S. Ross Kochenderfer Jr. FIRM NAME: Law Offices of S. Ross Kochenderfer Jr., P. C. STREET ADDRESS: 12210 Herdal Drive, Suite 11 CITY: Auburn STATE: CA ZIP CODE: 95603 TELEPHONE NO.: (530) 823-9858 FAX NO.: (530) 823-0450 E-MAIL ADDRESS: rklaw@pacbell.net ATTORNEY FOR (name): Jessica L. Palmer		ELECTRONICALLY FILED Superior Court of California, County of Placer 06/09/2026 at 02:10:47 PM By: Karlee M Parsons Deputy Clerk	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF PLACER STREET ADDRESS: 101 Maple Street MAILING ADDRESS: 101 Maple Street CITY AND ZIP CODE: Auburn 95603 BRANCH NAME: Historic Court House			
ESTATE OF (name): James E. Palmer DECEDENT			
PETITION FOR ☒ Probate of ☐ Lost Will and for Letters Testamentary ☐ Probate of ☐ Lost Will and for Letters of Administration with Will Annexed ☐ Letters of Administration ☐ Letters of Special Administration ☐ with general powers ☒ Authorization to Administer Under the Independent Administration of Estates Act ☐ with limited authority		CASE NUMBER: S-PR-0014286	
		HEARING DATE AND TIME: 11/9/2026 October 5, 2026 8:30 am	DEPT.: 2

1. Publication will be in (specify name of newspaper): Auburn Journal
 a. ☒ Publication requested.
 b. ☐ Publication to be arranged.
2. Petitioner (name each): Jessica L. Palmer

requests that

- a. ☒ decedent's will and codicils, if any, be admitted to probate.
- b. (name): Jessica L. Palmer be appointed
- (1) ☒ executor
- (2) ☐ administrator with will annexed
- (3) ☐ administrator
- (4) ☐ special administrator ☐ with general powers
and Letters issue upon qualification.
- c. ☒ full ☐ limited authority be granted to administer under the Independent Administration of Estates Act.
- d. (1) ☒ bond not be required for the reasons stated in item 3e.
- (2) ☐ \$ bond be fixed. The bond will be furnished by an admitted surety insurer or as otherwise provided by law. (Specify reasons in Attachment 2 if the amount is different from the maximum required by Prob. Code, § 8482.)
- (3) ☐ \$ in deposits in a blocked account be allowed. Receipts will be filed.
(Specify institution and location):
3. a. Decedent died on (date): March 8, 2026 at (place): Sacramento
- (1) ☒ a resident of the county named above.
- (2) ☐ a nonresident of California and left an estate in the county named above located at (specify location permitting publication in the newspaper named in item 1):
- b. ☐ Decedent was a citizen of a country other than the United States (specify country):
- c. Street address, city, and county of decedent's residence at time of death (specify):
630 Gladyscon Road
Colfax, Placer County

ESTATE OF (name): James E. Palmer

DECEDENT

CASE NUMBER:

3. d. Character and estimated value of the property of the estate (complete in all cases):

- (1) Personal property: \$ 300,000.00
- (2) Annual gross income from
- (a) real property: \$ 0.00
- (b) personal property: \$ 5,000.00
- (3) Subtotal (add (1) and (2)): \$ 305,000.00
- (4) Gross fair market value of real property: \$ 400,000.00
- (5) (Less) Encumbrances: (\$ 125,000.00)
- (6) Net value of real property: \$ 275,000.00
- (7) Total (add (3) and (6)): \$ 580,000.00

- e. (1) ☒ Will waives bond. ☐ Special administrator is the named executor, and the will waives bond.
- (2) ☐ All beneficiaries are adults and have waived bond, and the will does not require a bond. (Affix waiver as Attachment 3e(2).)
- (3) ☐ All heirs at law are adults and have waived bond. (Affix waiver as Attachment 3e(3).)
- (4) ☐ Sole personal representative is a corporate fiduciary or an exempt government agency.

- f. (1) ☐ Decedent died intestate.
- (2) ☒ Copy of decedent's will dated: 10/24/2013 ☐ codicil dated (specify for each):

are affixed as Attachment 3f(2). (Include typed copies of handwritten documents and English translations of foreign-language documents.)

☒ The will and all codicils are self-proving (Prob. Code, § 8220).

- (3) ☐ The original of the will and/or codicil identified above has been lost. (Affix a copy of the lost will or codicil or a written statement of the testamentary words or their substance in Attachment 3f(3), and state reasons in that attachment why the presumption in Prob. Code, § 6124 does not apply.)

g. Appointment of personal representative (check all applicable boxes):

- (1) Appointment of executor or administrator with will annexed:
- (a) ☒ Proposed executor is named as executor in the will and consents to act.
- (b) ☐ No executor is named in the will.
- (c) ☐ Proposed personal representative is a nominee of a person entitled to Letters. (Affix nomination as Attachment 3g(1)(c).)
- (d) ☐ Other named executors will not act because of ☐ death ☐ declination ☐ other reasons (specify):

☐ Continued in Attachment 3g(1)(d).

- (2) Appointment of administrator:
- (a) ☐ Petitioner is a person entitled to Letters. (If necessary, explain priority in Attachment 3g(2)(a).)
- (b) ☐ Petitioner is a nominee of a person entitled to Letters. (Affix nomination as Attachment 3g(2)(b).)
- (c) ☐ Petitioner is related to the decedent as (specify):
- (3) ☐ Appointment of special administrator requested. (Specify grounds and requested powers in Attachment 3g(3).)
- (4) ☐ Proposed personal representative would be a successor personal representative.

h. Proposed personal representative is a

- (1) ☐ resident of California.
- (2) ☒ nonresident of California (specify permanent address):
3-866 Dovercourt Road
Toronto, ON, Canada M6H 2X5
- (3) ☐ resident of the United States.
- (4) ☒ nonresident of the United States.

ESTATE OF (name): James E. Palmer

DECEDENT

CASE NUMBER:

4. ☐ Decedent's will does not preclude administration of this estate under the Independent Administration of Estates Act.
5. a. Decedent was survived by (check items (1) or (2), and (3) or (4), and (5) or (6), and (7) or (8))
- (1) ☐ spouse.
 - (2) ☒ no spouse as follows:
 - (a) ☒ divorced or never married.
 - (b) ☐ spouse deceased.
 - (3) ☐ registered domestic partner.
 - (4) ☒ no registered domestic partner. (See Fam. Code, § 297.5(c); Prob. Code, §§ 37(b), 6401(c), and 6402.)
 - (5) ☒ child as follows:
 - (a) ☒ natural or adopted.
 - (b) ☐ natural adopted by a third party.
 - (6) ☐ no child.
 - (7) ☐ issue of a predeceased child.
 - (8) ☒ no issue of a predeceased child.
- b. Decedent ☐ was ☒ was not survived by a stepchild or foster child or children who would have been adopted by decedent but for a legal barrier. (See Prob. Code, § 6454.)
6. (Complete if decedent was survived by (1) a spouse or registered domestic partner but no issue (only a or b apply), or (2) no spouse, registered domestic partner, or issue. (Check the first box that applies):
- a. ☐ Decedent was survived by a parent or parents who are listed in item 8.
 - b. ☐ Decedent was survived by issue of deceased parents, all of whom are listed in item 8.
 - c. ☐ Decedent was survived by a grandparent or grandparents who are listed in item 8.
 - d. ☐ Decedent was survived by issue of grandparents, all of whom are listed in item 8.
 - e. ☐ Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
 - f. ☐ Decedent was survived by next of kin, all of whom are listed in item 8.
 - g. ☐ Decedent was survived by parents of a predeceased spouse or issue of those parents, if both are predeceased, all of whom are listed in item 8.
 - h. ☐ Decedent was survived by no known next of kin.
7. (Complete only if no spouse or issue survived decedent.)
- a. ☐ Decedent had no predeceased spouse.
 - b. ☐ Decedent had a predeceased spouse who
 - (1) ☐ died not more than 15 years before decedent and who owned an interest in real property that passed to decedent,
 - (2) ☐ died not more than five years before decedent and who owned personal property valued at \$10,000 or more that passed to decedent, (If you checked (1) or (2), check only the first box that applies):
 - (a) ☐ Decedent was survived by issue of a predeceased spouse, all of whom are listed in item 8.
 - (b) ☐ Decedent was survived by a parent or parents of the predeceased spouse who are listed in item 8.
 - (c) ☐ Decedent was survived by issue of a parent of the predeceased spouse, all of whom are listed in item 8.
 - (d) ☐ Decedent was survived by next of kin of the decedent, all of whom are listed in item 8.
 - (e) ☐ Decedent was survived by next of kin of the predeceased spouse, all of whom are listed in item 8.
 - (3) ☐ neither (1) nor (2) apply.
8. Listed on the next page are the names, relationships to decedent, ages, and addresses, so far as known to or reasonably ascertainable by petitioner, of (1) all persons mentioned in decedent's will or any codicil, whether living or deceased; (2) all persons named or checked in items 2, 5, 6, and 7; and (3) all beneficiaries of a trust named in decedent's will or any codicil in which the trustee and personal representative are the same person.

ESTATE OF (name): James E. Palmer

DECEDENT

CASE NUMBER:

8.	<u>Name and relationship to decedent</u>	<u>Age</u>	<u>Address</u>
	Jessica L. Palmer, Daughter	Adult	3-866 Dovercourt Road, Toronto, ON, Canada M6H 2X5
	Jared J. Palmer, Son	Adult	P. O. Box 7089, South Lake Tahoe, CA 96158

☐ Continued on Attachment 8.
9. Number of pages attached: 7

Date:

June 9, 2026S. Ross Kochenderfer Jr.

(TYPE OR PRINT NAME OF ATTORNEY)



(SIGNATURE OF ATTORNEY) *

* (Signatures of all petitioners are also required. All petitioners must sign, but the petition may be verified by any one of them (Prob. Code, §§ 1020, 1021, Cal. Rules of Court, rule 7.103).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

June 4, 2026Jessica L. Palmer

(TYPE OR PRINT NAME OF PETITIONER)



(SIGNATURE OF PETITIONER)

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

Signatures of additional petitioners follow last attachment.

Attachment 3f (2)

RECEIVED

JUN 03 2026

LAST WILL AND TESTAMENT
OF
JAMES E. PALMER

Superior Court of California
County of Placer

I, JAMES E. PALMER, a resident of the County of Placer, State of California, being of lawful age and of sound and disposing mind, and not acting under duress, menace, fraud or undue influence of any person whomsoever, do hereby make, publish and declare this to be my Last Will and Testament, and do hereby expressly revoke all former Wills and Codicils previously made by me.

SECTION 1. I declare that I am married to but separated from MICHELLE R. PALMER. I have two children from our marriage, namely JESSICA L. PALMER and JARED J. PALMER. I do not have any children who died leaving issue.

SECTION 2. It is my intention to dispose of only my property that is not within the dispositive power of the Trust I have established entitled THE JAMES E. PALMER REVOCABLE TRUST dated OCTOBER 14, 2013.

SECTION 3. I hereby give, devise and bequeath all of my estate, of whatsoever kind or character, whether real, personal or mixed, and wheresoever situated, to the Trustee of that Trust entitled THE JAMES E. PALMER REVOCABLE TRUST dated OCTOBER 14, 2013, executed by me as Grantor, as part of the Trust to be administered and disposed of in accordance with the provisions of the Trust, including any amendments or restatements made to the Trust before my death.

If for any reason the foregoing bequest lapses or fails, I give the residue of my estate to the Trustee named in the Trust Agreement referred to in the previous paragraph of this Will, to be held, administered and distributed pursuant to the terms and provisions of that Trust Agreement in the same manner as if such terms and provisions, as presently existing, had been set forth herein in full. In the event that the Trustee named in such Trust Agreement is unable to act, declines to become Trustee, resigns, dies, or becomes legally incapacitated, I hereby appoint JESSICA L. PALMER to act as Trustee as set forth therein.

SECTION 4. I nominate and appoint JESSICA L. PALMER as Executor of this Will, with power of sale and lease, to serve without bond and with the power of sale and lease.

If for any reason JESSICA L. PALMER is unable or unwilling to serve as Executor, MARK RISPOLI shall be appointed as Executor, all to serve without bond, and with the power of sale and lease.

SECTION 5. In addition to any powers now or hereafter conferred upon executors by law, including all powers granted under the Independent Administration of Estates Act, the Executor shall have the power to:

- (a) sell estate assets at public or private sale, for cash or on credit terms;
- (b) lease estate assets without restriction as to duration; and
- (c) invest any surplus moneys of the estate in real or personal property, as the Executor deems advisable.

The Executor may distribute estate assets otherwise distributable to a minor beneficiary to:

- (a) the guardian of the minor's person or estate;
- (b) any adult person with whom the minor resides and who has the care, custody or control of the minor; or
- (c) a custodian, serving on behalf of the minor under the Uniform Gifts to Minors Act of any state or the Uniform Transfers to Minors Act of any state.

The Executor is free of liability and is discharged from any further accountability for distributing assets in compliance with the provisions of this paragraph.

On any distribution of assets from the estate, the Executor shall have the discretion to partition, allot and distribute the assets:

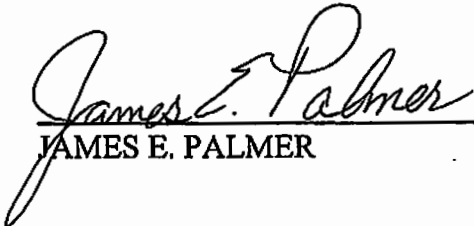
- (a) in kind, including undivided interest in any asset or in any part of it; or
- (b) partly in cash and partly in kind; or
- (c) entirely in cash.

If a distribution is being made to more than one beneficiary, the Executor shall have the discretion to distribute assets among them on a pro rata or non-pro rata basis, with the assets valued as of the date of distribution.

SECTION 6. Except as otherwise provided in this Will, I have intentionally failed to provide herein for any of my heirs, and I specifically disinherit any person claiming to be an heir who is not provided for in this Will. If any devisee under this Will shall directly or indirectly, by legal proceedings or otherwise, challenge or contest this Will or any of its provisions, or shall attempt in any way to oppose or set aside the probate of this Will or impair or invalidate any of the provisions I have made in it, any devise or other provisions I have made to or for that person under this Will is revoked and shall be disposed of in the same manner as if that contesting devisee had predeceased me.

SECTION 7. If any provision under this Will, or of any Codicil to this Will, should be invalid, it is my intention that all the remaining provisions thereof shall continue to be fully effective.

I SUBSCRIBE MY NAME to this Will on October 24, 2013, in the presence of attesting witnesses, who subscribed their names hereto at my request and in my presence.

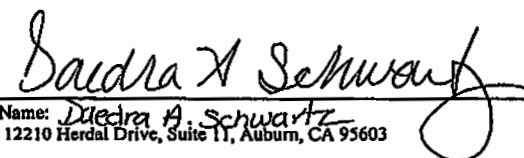

JAMES E. PALMER

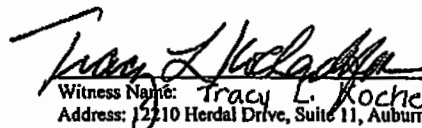
ATTESTATION CLAUSE

On the date written below, JAMES E. PALMER, the testator, declared to us, the undersigned, that this instrument, consisting of three (3) pages, including the third page upon which this attestation clause concludes, was the testator's Last Will and Testament. Each of us observed the signing of this Will by said JAMES E. PALMER, and by each other subscribing witness we know that each signature is the true signature of the person whose name was signed.

Each of us is now more than 18 years of age and a competent witness and resides at the address set forth after his or her name. We declare that the testator is of adult age and appears to be of sound mind. We further declare that we have no knowledge that the foregoing Will was procured by duress, fraud, menace or undue influence. We each declare under penalty of perjury that the foregoing is true and correct.

This instrument was signed by us on October 24, 2013, at Auburn, California.


Witness Name: Duedra A. Schwartz
Address: 12210 Herdal Drive, Suite 11, Auburn, CA 95603


Witness Name: Tracy L. Kochenderfer
Address: 12210 Herdal Drive, Suite 11, Auburn, CA 95603

Declaration of Counsel Pursuant to Local Rule 80.2.1

1 S. Ross Kochenderfer, Jr. (SBN 78829)
2 **LAW OFFICES OF S. ROSS KOCHENDERFER, JR.**
3 A Professional Corporation
4 12210 Herdal Drive, Suite 11
5 Auburn, California 95603
6 (530)823-9858 FAX (530)823-0450

7 Attorney for Jessica L. Palmer, Petitioner

8
9 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
10 **IN AND FOR THE COUNTY OF PLACER**
11

12 In re the Estate of

13 James E. Palmer

14 Decedent.

15 Case No.

16 **DECLARATION OF S. ROSS**
17 **KOCHENDERFER JR. ESQ, IN**
18 **SUPPORT OF PETITION FOR**
19 **PROBATE OF WILL [L. R. 80.2.1]**

20 Date: October 5, 2026
21 Time: 8:30 am
22 Dept. 2

23 I, S. ROSS KOCHENDERFER JR., ESQ, hereby declare as follows:

24 1. I am an attorney licensed and in good standing in the State of California and
25 attorney for JESSICA L. PALMER, Petitioner in the above matter. If called upon to testify I
26 could and would testify competently of my own knowledge as set forth herein.

27 2. I am very familiar with the terms of the James E. Palmer Revocable Trust Dated
28 October 14, 2013. The current and acting sole trustee, upon Decedent's death, is Decedent's
daughter and eldest child, JESSICA L. PALMER, who is Petitioner. The next Successor Trustee
is MARK RISPOLI a friend of the Decedent, if Petitioner could not serve. The sole and vested

1 beneficiaries of the James E. Palmer Revocable Trust Dated October 14, 2013, are Petitioner and
2 Petitioner's brother (JARED J. PALMER), in equal shares.
3
4

5 I declare under penalty of perjury under the laws of the State of California that the
6 foregoing is true and correct. Executed on June 9, 2026, at Auburn, California.
7
8
9

10
11 Date:

June 9, 2026


S. Ross Kochenderfer Jr.